

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
RANDOLPH WILLIAMS,

Plaintiff,

-against-

Index №.:

**VERIFIED COMPLAINT
AND DEMAND FOR
JURY TRIAL**

THE CITY OF NEW YORK individually and for the
NEW YORK CITY POLICE DEPARTMENT, and KINGS
COUNTY DISTRICT ATTORNEY'S OFFICE;
DETECTIVE THOMAS HANDLEY, DETECTIVE JAMES
BODNAR, DETECTIVE MARK BROWN, DETECTIVE
DINO ANSELMO, DETECTIVE BRIAN ELZ, DETECTIVE
CHRIS FLORIO, DETECTIVE KIM CARILLO,
DETECTIVE SULLIVAN, DETECTIVE ANDREW
TORLINCASI, DETECTIVE BILLIE, DETECTIVE LUIS
FONTANEZ, DETECTIVE LUIS BATISTA, POLICE
OFFICER JASON REEVES, POLICE OFFICER MULERO,
POLICE OFFICER JASMINE [MULLER] VALEZ, POLICE
OFFICER KARL KRIKELIS, POLICE OFFICER ANDREW
TORLIONCAS, AND POLICE OFFICER ABRAHAM
CRUZ, individually and in their official capacities as members
of the NEW YORK CITY POLICE DEPARTMENT; and
JOHN DOE DETECTIVES #1-5, individually and in their
official capacity as detective investigators for the KINGS
COUNTY DISTRICT ATTORNEY'S OFFICE; JOHN DOE
OFFICERS AND DETECTIVES #1-5, individually and in
their official capacities as members of the NEW YORK CITY
POLICE DEPARTMENT; and KINGS COUNTY DISTRICT
ATTORNEY'S OFFICE, HOWARD JACKSON, ESQ., AL
DEINGENIIS, ESQ., and LARRY FREDELLA, ESQ.,
individually and in their official capacities as members of the
Defendant KINGS COUNTY DISTRICT ATTORNEY'S
OFFICE,

Defendants.

-----X

Plaintiff Randolph Williams, by and through his attorneys, Edelman & Edelman, P.C.,
and co-counsel Paul F. Callan, of counsel to Edelman & Edelman, P.C., complaining of the
Defendants, states as follows:

PRELIMINARY STATEMENT

1. This is a civil action against the Defendants based on and arising out of the wrongful acts and omissions of the NEW YORK CITY POLICE DEPARTMENT (hereinafter “NYPD”), the KINGS COUNTY DISTRICT ATTORNEY’S OFFICE (hereinafter “KCDA”), and certain employees and agents of these offices named herein, in which the Plaintiff RANDOLPH WILLIAMS (hereinafter “Mr. Williams”, or “Plaintiff”) seeks relief for the violation of his rights secured under the Constitution of the State of New York, and the common law of the State of New York.

2. This is a civil action seeks monetary damages pursuant to state law for Mr. Williams, due to his wrongful arrest, prosecution, conviction and 9-year imprisonment caused by the pervasive misconduct of the Defendants.

3. The Plaintiff, Randolph Williams seeks both compensatory and punitive damages, injunctive and declaratory relief, and an award of costs and attorney’s fees, and such other and further relief as this court deems just and proper for being deprived of his life and liberty, spending nine (9) years in prison for a crime that he did not commit.

4. Mr. Williams provided an alibi defense that he was in Coney Island, Brooklyn, at the time of the murder, and not the Williamsburg Housing Projects, where the murder took place, nearly seventeen miles away.

5. Mr. Williams never wavered; he maintained his innocence throughout the period of his arrest, trial, and conviction.

6. Nonetheless, Defendants City of New York, and its agency The New York City Police Department and the King’s County District Attorney’s Office:

- a. investigated, arrested, prosecuted, and convicted Mr. Williams knowing at all times there was no probable cause to do so;
 - b. failed to disregard patently false witness claims, using them instead to incriminate Mr. Williams;
 - c. failed to investigate self-contradictory witness claims;
 - d. coerced, intimidated or pressured witnesses to testify against Mr. Williams;
 - e. knowingly induced witnesses to testify falsely against Mr. Williams;
 - f. withheld and wrongfully denied the existence of *Brady* material and evidence that supported Mr. Williams's alibi defense;
 - g. withheld impeachment material;
 - h. violated Mr. Williams Confrontation Clause rights and his Right to Present a Defense;
 - i. wrongfully presented false evidence against Mr. Williams;
 - j. continued to investigate, arrest and prosecute Mr. Williams knowing that their witness's story was a physical impossibility; and
 - k. continued to investigate, arrest, and prosecute Mr. Williams knowing that their witness's story was likely untrue, and the product of mental illness and coercion.
7. The unlawful, documented actions of Defendants' officers, prosecutors detectives, employees and agents resulted from affirmative or *de facto* or municipal policies, practices, and customs which violate the constitutional rights of criminal suspects and Defendant, or from deliberate indifference by policymaking officials, acting on behalf of the City of New York, to such violations.
8. Upon information and belief, the Defendants as a matter of policy:

- a. coerced witnesses to give false or unreliable testimony through their misuse of power and interrogation;
 - b. unlawfully concealed exculpatory or impeachment evidence in violation of their “*Brady*” obligations, and in violation of the Confrontation Clause;
 - c. lied to and misled courts, witnesses, defense attorneys, and defendants in order to cover up their unlawful behavior; and
 - d. ignored known information exculpating defendants, like Mr. Williams.
9. Upon information and belief, it was a matter of practice and policy within the NYPD and KCDA to promote this type of unlawful and unconstitutional behavior, praising and promoting such individuals, and thereby encouraging future constitutional violations to occur, including those directed against Mr. Williams.
10. Having become aware of such improper behavior, the Defendants also exhibited a deliberate indifference to these illegal actions, which had the effect of encouraging their employees to continue to violate the constitutional rights of Defendants in criminal cases, including the Plaintiff’s case.
11. Upon information and belief, the Defendants failed to disclose *Brady*, impeachment, and Confrontation Clause material, including the known mental and emotional illness, conditions, and related history of the key witness, Annabelle Randolph (hereinafter at times referred to as “Ms. Randolph”).
12. Not only did Defendants and their agents cause through their own misconduct the unconstitutional imprisonment of this innocent plaintiff, but they also failed to entertain, consider and investigate more credible leads to find the actual shooter and murderer, who remains free to this day.

13. This pattern of misconduct, acts of commission and omission, recklessness and negligence as well as willful deprivation of *Brady* material from Mr. Williams by those sworn to uphold the law, was reflective of a systematic deprivation of New York State Constitutional rights as well as common law and statutory rights of Mr. Williams and other accused innocents by the Defendants.

**A. KINGS COUNTY DISTRICT ATTORNEY
ACKNOWLEDGES THE WRONGFUL
CONVICTION CRISIS**

14. Before his death in 2016, the former District Attorney of King's County, Kenneth Thompson, publicly initiated investigations of well over fifty possible wrongful convictions related to *one* NYPD Brooklyn North Homicide Squad detective, and dozens, perhaps *hundreds* more. Vivan Yee, *As 2 Go Free, Brooklyn Conviction Challenges Keep Pouring In*, NEW YORK TIMES [Feb. 6, 2014], available at: https://www.nytimes.com/2014/02/07/nyregion/at-new-brooklyn-district-attorneys-door-a-tidal-wave-of-wrongful-conviction-cases.html?smid=pl-share&_r=0.

15. The late District Attorney for Kings County, Kenneth Thompson, made it his mission to reverse the injustices within the NYPD and KCDA that occurred by expanding on the Kings County Conviction Review Unit within the KCDA's office, to go through hundreds of cases and past files where it is suspected that the NYPD and KCDA acted unlawfully.



Figure 1: The late KCDA Kenneth Thompson at a press conference
(Photo: NY Times)

16. The Conviction Review Unit has been expanded upon in part because of the problematic prosecutions and police work during high-crime eras. Chelsia Rose Marcus, and Bill Hutchinson, *Brooklyn DA expanding wrongful conviction reviews beyond murder cases*,

NEW YORK DAILY NEWS, [Jan. 29, 2015], available at: <http://www.nydailynews.com/new-york/nyc-crime/brooklyn-da-expand-wrongful-conviction-reviews-article-1.2095966>.

17. Upon information and belief, Mr. Williams's case is not an isolated incident arising out of NYPD and KCDA's unlawful behavior, but is merely one of many where district attorneys and police personnel were encouraged to carry out the City's unlawful policy that encouraged, *inter alia*:

- a. perfunctory investigations to secure convictions;
- b. withholding evidence that contradicted the People's case; and
- c. paying and making undisclosed promises and "deals" with key witnesses for false testimony.

18. Mr. Williams's investigation and arrest originated from this very same homicide unit in the 90th Precinct.

19. Defendants used and abused their power under color of state law with intent to do harm to Plaintiff, and caused Plaintiff to be wrongfully incarcerated.

20. The grounds for this action arise out of these wrongful, unlawful, and improper and unconstitutional acts of the above named Defendants, including:

- a. the creation and use of false evidence;
- b. the coercion of witnesses to give false testimony;
- c. the manipulation of vulnerable witnesses to give false testimony;
- d. suppression and concealment of exculpatory evidence;
- e. suppression and concealment of evidence and impeachment material in violation of *Brady*;
- f. suppression and concealment of evidence and impeachment material in violation of the Confrontation Clause;

- g. suppression and concealment of evidence and impeachment material in violation of the Right to Present a Defense;
- h. malicious prosecution;
- i. prosecutorial misconduct;
- j. officer misconduct;
- k. false arrest; and
- l. deprivation of due process, liberty, and the right to a fair trial.

JURISDICTION AND VENUE

21. This is a civil action against the City of New York based on and arising out of the wrongful acts and omissions of the NYPD and KCDA and certain employees and agents of these offices, in which the Plaintiff seeks relief for the violation of his rights secured by the common law and Constitution of the State of New York.

22. This action seeks monetary damages and attorney's fees for the plaintiff due to his wrongful arrest, prosecution, conviction and nine years of imprisonment caused by the pervasive misconduct of the City of New York acting by and through the NYPD and KCDA.

23. The City of New York, the NYPD and the KCDA are liable to the Plaintiff directly and under the theory of *respondeat superior* for the acts of their employees, borrowed servants and authorized representatives.

24. The named individuals in the caption are sued in both their individual and official capacities.

**A. COMPLIANCE WITH NY GENERAL
MUNICIPAL LAW**

25. Mr. Williams has complied with the requirements of New York General Municipal Law Section 50-i by serving a notice of claim on the City of New York Office of the Comptroller on June 17, 2014, within the time required by New York General Municipal Law Section 50-e.

26. More than 30 days have elapsed since the service of that notice and no offer of settlement has been made.

27. At all times herein mentioned, the Defendant, The City of New York, was and still is a municipal corporation, duly organized and existing, pursuant to and by virtue of the laws of the State of New York.

28. At all times herein mentioned, NYPD was and still is a department of the City of New York.

29. At all times herein mentioned, KCDA was and still is a department of the City of New York, in the Borough of Kings County.

30. At the request of the City of New York Office of the Comptroller, Mr. Williams submitted to a hearing pursuant to New York General Municipal Law Section 50-h on December 14, 2016.

31. Plaintiff's cause of action accrued on March 15, 2016, when his case was dismissed.

32. Less than one year has passed since the Plaintiff's causes of action accrued.

33. This action is timely commenced.

34. Venue is proper in that all of the events relevant to this occurrence including the murder of Vincent Hill, investigation, arrest, prosecution, and trial of Mr. Williams took place in Kings County.

35. Jurisdiction and venue are proper under CPLR sections 503, 504, 505, and 505A.

THE PARTIES

A. PLAINTIFF RANDOLPH WILLIAMS

36. Plaintiff Randolph Williams (“Mr. Williams”) was at all times material to this complaint a citizen and resident of the State of New York.

37. Mr. Williams is also the son of New York City Correction Officer, Rosie Brown Benjamin, who has stood by her son throughout his decade-long ordeal.

38. Mr. Williams did not shoot or kill Vincent Hill.

B. DEFENDANTS

1) Defendant City of New York

39. Defendant City of New York was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York.

40. Defendant City of New York is a political subdivision of the State of New York existing by virtue of the laws of the State of New York and is considered a person amenable to suit.

41. Defendant City of New York was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York.

2) Defendant NYPD

42. Defendant City of New York was, at all times relevant herein, authorized by law to maintain, and did maintain, a police department known as the New York City Police Department which acted as its agent in the area of law enforcement, including, without limitation, conducting investigations of and evaluating and causing charges to be brought about alleged crimes.

43. The NYPD was, at all times relevant herein, a municipal agency of the City of New York and was charged with the responsibility of enhancing the quality of life by working in accordance with constitutional rights to enforce the law.

44. Defendants former or current NYPD officers or detectives were, at all times relevant herein, officers, employees, and agents of the NYPD.

45. These parties are sued individually and in their official capacities.

3) Defendant KCDA

46. Defendant City of New York was also, at all times relevant herein, authorized to act through the KCDA's office in regard to investigation, evaluation and prosecution of the alleged criminal conduct within the Kings County, State of New York.

47. The King's County District Attorney's office was at all times relevant herein a governmental entity created and authorized under the laws of the State of New York to investigate and prosecute criminal conduct within Kings County, New York.

48. The KCDA is vested with the authority to make policy for the City of New York concerning prosecutions and the actions of assistant district attorneys in Kings County, New York.

4) The Individual Defendants

i) The Detectives

49. The Defendant Thomas Handley ("Handley") at all times relevant to this complaint was a duly-appointed and acting police officer of the NYPD, an agency of the Defendant City of New York, with the rank of detective, acting under color of law and in his individual capacity within the scope of employment, pursuant to the statutes, ordinances, regulations, policies, customs and usage of the City of New York and the State of New York.

50. The Defendant James Bodnar (“Bodnar”) at all times relevant to this complaint was a duly-appointed and acting police officer of the NYPD, an agency of the Defendant City of New York, with the rank of detective, acting under color of law and in his individual capacity within the scope of employment, pursuant to the statutes, ordinances, regulations, policies, customs and usage of the City of New York and the State of New York.

51. The Defendant Mark Brown (“Brown”) at all times relevant to this complaint was a duly-appointed and acting police officer of the NYPD, an agency of the Defendant City of New York, with the rank of detective, acting under color of law and in his individual capacity within the scope of employment, pursuant to the statutes, ordinances, regulations, policies, customs and usage of the City of New York and the State of New York.

52. The Defendant Dino Anselmo (“Anselmo”) at all times relevant to this complaint was a duly-appointed and acting police officer of the NYPD, an agency of the Defendant City of New York, with the rank of detective, acting under color of law and in his individual capacity within the scope of employment, pursuant to the statutes, ordinances, regulations, policies, customs and usage of the City of New York and the State of New York.

53. The Defendant Brian Elz (“Elz”) at all times relevant to this complaint was a duly-appointed and acting police officer of the NYPD, an agency of the Defendant City of New York, with the rank of detective, acting under color of law and in his individual capacity within the scope of employment, pursuant to the statutes, ordinances, regulations, policies, customs and usage of the City of New York and the State of New York.

54. The Defendant Leonard Ayers (“Ayers”) at all times relevant to this complaint was a duly-appointed and acting police officer of the NYPD, an agency of the Defendant City of New York, with the rank of detective, acting under color of law and in his individual capacity within

the scope of employment, pursuant to the statutes, ordinances, regulations, policies, customs and usage of the City of New York and the State of New York.

55. The Defendant Chris Florio (“Florio”) at all times relevant to this complaint was a duly-appointed and acting police officer of the NYPD, an agency of the Defendant City of New York, with the rank of detective, acting under color of law and in his individual capacity within the scope of employment, pursuant to the statutes, ordinances, regulations, policies, customs and usage of the City of New York and the State of New York.

56. The Defendant Kim Carillo (“Carillo”) at all times relevant to this complaint was a duly-appointed and acting police officer of the NYPD, an agency of the Defendant City of New York, with the rank of detective, acting under color of law and in her individual capacity within the scope of employment, pursuant to the statutes, ordinances, regulations, policies, customs and usage of the City of New York and the State of New York.

57. The Defendant Detective (F/N/U) Sullivan (“Sullivan”) at all times relevant to this complaint was a duly-appointed and acting police officer of the NYPD, an agency of the Defendant City of New York, with the rank of detective, acting under color of law and in his individual capacity within the scope of employment, pursuant to the statutes, ordinances, regulations, policies, customs and usage of the City of New York and the State of New York.

58. The Defendant Andrew Torlincasi (“Torlincasi”) at all times relevant to this complaint was a duly-appointed and acting police officer of the NYPD, an agency of the Defendant City of New York, with the rank of detective, acting under color of law and in his individual capacity within the scope of employment, pursuant to the statutes, ordinances, regulations, policies, customs and usage of the City of New York and the State of New York.

59. The Defendant Detective (F/N/U) Billie (“Billie”) at all times relevant to this complaint was a duly-appointed and acting police officer of the NYPD, an agency of the

Defendant City of New York, with the rank of detective, acting under color of law and in his individual capacity within the scope of employment, pursuant to the statutes, ordinances, regulations, policies, customs and usage of the City of New York and the State of New York.

60. The Defendant Luis Fontanez (“Fontanez”) at all times relevant to this complaint was a duly-appointed and acting police officer of the NYPD, an agency of the Defendant City of New York, with the rank of detective, acting under color of law and in his individual capacity within the scope of employment, pursuant to the statutes, ordinances, regulations, policies, customs and usage of the City of New York and the State of New York.

ii) The Police Officers

61. The Defendant Luis Batista (“Batista”) at all times relevant to this complaint was a duly-appointed and acting police officer of the NYPD, an agency of the Defendant City of New York, with the rank of detective, acting under color of law and in his individual capacity within the scope of employment, pursuant to the statutes, ordinances, regulations, policies, customs and usage of the City of New York and the State of New York.

62. The Defendant Jason Reeves (“Reeves”) at all times relevant to this complaint was a duly-appointed and acting police officer of the NYPD, an agency of the Defendant City of New York, with the rank of officer, acting under color of law and in his individual capacity within the scope of employment, pursuant to the statutes, ordinances, regulations, policies, customs and usage of the City of New York and the State of New York.

63. The Defendant Police Officer (F/N/U) Mulero (“Mulero”) at all times relevant to this complaint was a duly-appointed and acting police officer of the NYPD, an agency of the Defendant City of New York, with the rank of officer, acting under color of law and in his individual capacity within the scope of employment, pursuant to the statutes, ordinances, regulations, policies, customs and usage of the City of New York and the State of New York.

64. The Defendant Jasmine [Muller] Valez (“Valez”) at all times relevant to this complaint was a duly-appointed and acting police officer of the NYPD, an agency of the Defendant City of New York, with the rank of officer, acting under color of law and in her individual capacity within the scope of employment, pursuant to the statutes, ordinances, regulations, policies, customs and usage of the City of New York and the State of New York.

65. The Defendant Karl Krikelis (“Krikelis”) at all times relevant to this complaint was a duly-appointed and acting police officer of the NYPD, an agency of the Defendant City of New York, with the rank of officer, acting under color of law and in his individual capacity within the scope of employment, pursuant to the statutes, ordinances, regulations, policies, customs and usage of the City of New York and the State of New York.

66. The Defendant Andrew Torlioncas (“Torlioncas”) at all times relevant to this complaint was a duly-appointed and acting police officer of the NYPD, an agency of the Defendant City of New York, with the rank of officer, acting under color of law and in his individual capacity within the scope of employment, pursuant to the statutes, ordinances, regulations, policies, customs and usage of the City of New York and the State of New York.

67. The Defendant Abraham Cruz (“Cruz”) at all times relevant to this complaint was a duly-appointed and acting police officer of the NYPD, an agency of the Defendant City of New York, with the rank of officer, acting under color of law and in his individual capacity within the scope of employment, pursuant to the statutes, ordinances, regulations, policies, customs and usage of the City of New York and the State of New York.

*iii) The Assistant District
Attorneys*

68. The Defendant Howard Jackson (“Jackson”) at all times relevant to this complaint was a duly-appointed and acting employee of the KCDA, an agency of the Defendant City of New

York, with the rank of Assistant District Attorney, acting under color of law and in his individual capacity within the scope of employment, under the statutes, ordinances, regulations, policies, customs and usage of the City of New York and the State of New York.

69. The Defendant Alfred Deingeniis (“Deingeniis”) at all times relevant to this complaint was a duly-appointed and acting employee of the KCDA, an agency of the Defendant City of New York, with the rank of Assistant District Attorney, acting under color of law and in his individual capacity within the scope of employment, under the statutes, ordinances, regulations, policies, customs and usage of the City of New York and the State of New York.

70. The Defendant Larry Fredella (“Fredella”) at all times relevant to this complaint was a duly-appointed and acting employee of the KCDA, an agency of the Defendant City of New York, with the rank of Assistant District Attorney, acting under color of law and in his individual capacity within the scope of employment, under the statutes, ordinances, regulations, policies, customs and usage of the City of New York and the State of New York.

***iv) Other Individual
Defendants***

71. Defendants John Doe Officers and Detectives #1 -5, whose actual names the Plaintiff has been unable to ascertain despite reasonable efforts to do so, but who are sued herein by the fictitious designation “John Doe,” represent those officers and detectives in the NYPD and the KCDA acting under color of law and in their individual capacities within the scope of employment, pursuant to the statutes, ordinances, regulations, policies, customs and usage of the City of New York and the State of New York, who participated in the investigation and unlawful conduct that led to Williams’s wrongful conviction.

**FACTS: THE INVESTIGATION,
PROSECUTION, AND CONVICTION OF AN
INNOCENT MAN**

72. The trial transcript reflects that in the early morning hours of February 27, 2007, at about 2:00 a.m., several men were walking through the basketball courts located at the Williamsburg houses.

73. Eugene Bennett, whose street name was “Black”, Vincent Hill, whose street name was “B.A.”, and Tyriin Fisher were present.

74. According to Eugene Bennett, he heard multiple shots being fired quickly from somewhere behind Mr. Hill. Mr. Bennet claimed that he was not able to see who was firing the shots, but as he ran for cover, he slipped on the ice, and was shot twice in the leg.

75. Mr. Bennett also claimed that he picked up Mr. Hill’s gun from the ground and fired it multiple times in response.

76. At some point the victim, Vincent Hill, was struck by a bullet and mortally wounded.

77. According to Mr. Bennett, he recalled seeing Mr. Fisher trying to help Mr. Hill who had just been shot, but Mr. Bennett claimed that did not stay to help Mr. Hill; he limped away from the scene of the shooting as soon as possible.

78. Victim Vincent Hill lay dying, and succumbed to his injuries shortly thereafter.

79. When the defendant police officers and detectives arrived on the scene, they began their investigation into the shooting and murder of Vincent Hill.

80. The defendants falsely accused plaintiff, Randolph Williams, of shooting and killing Vincent Hill in the early morning hours of February 27, 2007 outside of 215 Stagg Walk in the Williamsburg Houses in the midst of a shootout.

81. When Mr. Hill was tragically shot in the early morning hours of February 27, 2007 outside of 215 Stagg Walk in the Williamsburg Housing Projects, plaintiff, Mr. Williams was in Coney Island, Brooklyn, approximately seventeen miles away.

82. Mr. Williams, from the time of his arrest, insisted that he could not have committed the crime, nor was he a participant in the shootout, as he was at a birthday party in Coney Island with friends at the time of Mr. Hill's murder, which took place at the Williamsburg Houses during the early morning hours of February 27, 2007; no credible evidence exists to the contrary.

83. Three witnesses, with whom Mr. Williams lived with, explained that he was with them all day and all night in Coney Island.

84. When Mr. Williams became aware that the police were looking for him, he voluntarily appeared at the 90th Police Precinct.

85. On or about March 20, 2007 at approximately 9:45am, Plaintiff Randolph Williams was arrested and charged with murder in the second degree and related charges in the County of Kings, State of New York.

A. EUGENE BENNETT

86. Upon information and belief, defendants in their quest to falsely implicate Mr. Williams for the murder of Vincent Hill turned to Eugene Bennett, a witness who admitted to having engaged in felonious criminal conduct at the scene of the shooting to wit: illegal possession and discharge of a loaded firearm.

87. Mr. Bennett sustained injuries during the shootout and was later taken to Bellevue Hospital for treatment of gunshot wounds sustained.

88. Mr. Bennett's fingerprints were found on a gun recovered at the scene of the shooting; however, upon information and belief, Mr. Bennett was never prosecuted for the murder of Mr.

Hill or for possession of the illegal, loaded firearm that he admitted to having possessed and fired.

89. Instead, upon information and belief, Mr. Bennett was given immunity by defendants in exchange for statements that falsely implicated Mr. Williams in the shooting.

90. Upon information and belief, defendants maliciously encouraged and induced Mr. Bennett to falsely implicate the plaintiff, Mr. Williams, despite their knowledge of a lack of corroborating physical evidence and a lack of any credible evidence that Mr. William's could have been involved in the commission of the crime.

91. Quite to the contrary, the recovered weapon found at the scene of the murder did not match plaintiff, Mr. William's DNA or fingerprints, contradicting Mr. Bennett's claims that Mr. Williams was present during the shootout.

92. Under oath at trial, Mr. Bennett was unable to identify Mr. Williams as a shooter at the scene.

B. TYRINN FISCHER

93. Upon information and belief, defendants also maliciously secured false statements from an additional witness who was found at the scene of the shooting, Tyriin Fisher.

94. Upon information and belief, Mr. Fisher was a blatantly unreliable witness who had been shot in the face just a week before in an unrelated incident.

95. At Mr. William's first trial in April, 2008, Mr. Fisher while under oath was unable to identify Mr. Williams as a shooter at the scene.

96. In 2015, Mr. Fisher provided a sworn affidavit stating that police officers, detectives, and assistant district attorneys coerced him in 2007 into making false statements that implicated Mr. Williams in the shooting and murder of Mr. Hill.

97. Additionally, in Mr. Fisher's 2015 affidavit he states that at no time did he even see the Mr. Williams during the incident which occurred in the early morning hours of February 27, 2007.

98. Instead, Mr. Fisher stated that in 2007, immediately after the shooting, the police held and interrogated him for nearly twenty-four hours. During this ordeal Mr. Fisher was inappropriately coached, promised deals, incentivized, and improperly induced to falsely state that Mr. Williams was involved in the shooting, which resulted in the murder of Mr. Hill.

**C. NO PROBABLE CAUSE ESTABLISHED
EARLY IN THE INVESTIGATION**

99. Upon information and belief, long before Mr. Williams was arrested, indicted, or convicted, defendants knew no probable cause existed to support the arrest, prosecution, and conviction of Mr. Williams.

**D. A VULNERABLE WITNESS; A PLIABLE
WITNESS; AN OPPORTUNITY**

100. When it was readily apparent that even the false and coerced statements of Mr. Bennett and Mr. Fisher could not support a murder case against Mr. Williams, defendants turned to Annabelle Randolph, a woman suffering from a known history of severe and persistent mental illness to implicate Mr. Williams.

101. Upon information and belief, defendants recognized an opportunity with Ms. Randolph; they could mold this witness into whatever they wanted.

102. Ms. Randolph provided the defendants a statement which implicated Mr. Williams. However, her statement was physically impossible; Ms. Randolph falsely claimed that she could hear the victim, Mr. Hill gurgle Mr. William's nickname from over 200 feet away, implicating

Mr. Williams as the culprit. Her ability to hear a “gurgle” from this distance is a physical impossibility and would suggest to any reasonable person that the witness statement was false.

103. Defendants knew or should have known that Ms. Randolph’s statement was false.

104. Ms. Randolph’s patently false recollection of the events surrounding Mr. Hill’s death have been shown by demonstrative evidence to be physically impossible, and should have never been considered a reliable statement.

105. Upon information and belief, there were plenty of warning signs that Ms. Randolph was an unreliable witness:

- a. Defendants were aware of her prior mental history;
- b. Defendants should have recognized mental illness from their interactions with her;
- c. Defendants should have been trained to recognize mental illness in their interactions with members of the public;
- d. Defendants should have realized this witness lacked the capacity to observe or perceive the event(s);
- e. Defendants’ should have realized this witness’s story was patently incredible;
- f. Defendants should have realized this witness’s story was self-contradictory.

106. Instead of disregarding or verifying Ms. Randolph’s story, upon information and belief, New York City police officers and detectives set about to coerce Ms. Randolph, including threatening to use evidence and testimony from drug addicts in the neighborhood to implicate her in the narcotics trade.

107. Ms. Randolph has stated that New York City police officers advised her that if she did not provide false evidence against Mr. Williams she would be evicted from her home, prosecuted, and imprisoned for the sale of narcotics.

108. The false testimony of this mentally ill woman acting under the threat of eviction, prosecution, and imprisonment was a key factor in obtaining the conviction of Mr. Williams.

109. The use of such tactics and the failure to disclose to Mr. Williams or his attorney, Ms. Randolph's history of mental illness and the deal she was promised in exchange for her false testimony was a shocking and malicious violation of the *Brady* obligations known to and binding upon all law enforcement personnel employed by the New York City Police Department and the King's County District Attorney's Office.

E. MISUSE OF THE *SIROIS* HEARING

110. In an effort to avoid testifying falsely against Mr. Williams at trial, Ms. Randolph attempted to avoid taking the witness stand by claiming that she was threatened and was in fear of testifying.

111. Ms. Randolph claimed an individual—one she could not identify by name—threatened her and called her a “snitch” when walking past her on a street near the Williamsburg Houses, as she supposedly exited her bank.

112. At the time of this alleged threat, Mr. Williams was in jail awaiting trial; it was impossible he could have been present at this supposed incident.

113. There was no evidence that Mr. Williams ever ordered or suggested to anyone that Ms. Randolph should even be called a “snitch” or threatened.

114. Defendants recognized an opportunity to avoid having the unstable Ms. Randolph subjected to the crucible of cross-examination at trial.

115. Defendants sought to have Ms. Randolph's grand jury testimony, adduced without the benefit of cross-examination, presented to the grand jury without the revelation that Ms. Randolph suffered from severe mental illness admitted at trial, instead of taking the risk of her actually testifying.

116. To this end, defendants sought and obtained a *Sirois* hearing pursuant to *People v. Sirois*, 92 AD2d 618 [2d Dep't 1983].

117. Defendants, who knew or should have known of Ms. Randolph's mental illness history, proffered her testimony about the so-called threat without ever disclosing to the defense or the court any information about the witnesses' mental health history.

118. The prosecution requested this *Sirois* hearing without ever advising the trial court of the totality of the then-available evidence, which indicated that Ms. Randolph was a mentally ill woman fearful of eviction and incarceration who never wanted to testify but for the law enforcement threats detailed above.

119. Ironically, the only "threats" to Annabelle Randolph came not from some conjured-up, apparition who supposedly materialized momentarily outside her bank, but from the Defendants, police and prosecutors, who coerced her into her testimony.

F. CONVICTION, APPEAL, RETRIAL, AND FREEDOM

120. Mr. Williams was found guilty and convicted of murder in the second degree and criminal possession of a weapon of a second degree on April 7, 2008.

121. Mr. Williams was sentenced to 22-years-to-life in prison on May 1, 2008.

122. Plaintiff then commenced a nearly decade-long battle with the appellate and trial courts, during which he was a prisoner of various state correctional facilities, punished as a prisoner.

123. Finally, in *People v. Williams*, decided on February 4, 2015 by the Appellate Division, Second Department, the court concluded that the Plaintiff had been deprived of his right to a fair trial. 2015 NY Slip Op. 00916 [2d Dep't February 4, 2015] (available at: http://www.courts.state.ny.us/reporter/3dseries/2015/2015_00916.htm).

124. The Appellate Division ordered the judgment of conviction reversed and the matter remitted to the Supreme Court, Kings County, for a new trial. *Id.*, (citing *People v. McCune*, 98 AD3d at 633).

125. A new trial was held in March, 2016, in Supreme Court of Kings County.

126. At retrial, not a single witness implicated Mr. Williams in the commission of the crime.

127. At that retrial, Supreme Court Justice Alan Marrus observed on the record that the prosecution failed to adduce the “key component of” its case, “which [was] anything identifying the Defendant as the perpetrator of the crime.” Exhibit A, page 4, lines 13-16 [Marrus, J.].

128. On March 15, 2016 after Plaintiff had suffered in prison for nearly nine (9) years for a crime that he did not commit, Justice Marrus dismissed the case against Plaintiff in its entirety stating the that the People did “not [make] out a prima facie case against the Defendant,” (Exhibit A, at 5, lines 2-3) and that the “People [were] unable to prove that [Mr. Williams] committed this crime.” Exhibit A, at 5, lines 7-9.

129. After suffering in jail for nearly a decade, Mr. Williams walked out of court a free man. See, Christina Carrega-Woodby, *Exclusive: Man accused of Brooklyn murder freed after spending nine years in jail as prosecutors fail to produce key witness*, NEW YORK DAILY NEWS, March 17, 2016. Available at: <http://www.nydailynews.com/new-york/brooklyn/exclusive-brooklyn-man-accused-murder-freed-9-yrs-article-1.2568347>.

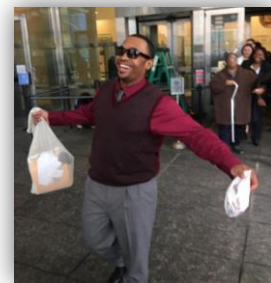


Figure 2: Randolph Williams leaves court a free man (Photo: NY Daily News)

130. Throughout the entire nine-year ordeal, Mr. Williams maintained and continues to maintain his innocence.

**VIOLATIONS OF THE DUTY TO INVESTIGATE,
BRADY, CONFRONTATION CLAUSE, AND THE
RIGHT TO PRESENT A DEFENSE**

A. PHYSICALLY IMPOSSIBLE STORY

131. When Ms. Randolph told her story about what she allegedly saw and heard, upon information and belief, defendant investigators immediately knew or should have known that her story implicating Mr. Williams as the shooter was not credible; it would have been physically impossible for her to witness the chain of events as she claimed from her vantage point from over 200 feet away.

132. From the inception of the investigation of Vincent Hill's shooting, defendants knew or should have known there was no probable cause.

133. 'Demonstrative evidence demonstrates that it was physically impossible from Ms. Randolph's location over 200 feet away for her to hear conversational voices, or the "gurgling" of the decedent Mr. Hill, as she claimed identified Mr. Williams as the perpetrator.

134. Upon hearing this story, defendants must have immediately deemed it suspect and implausible for several reasons:

- a. The defendants knew Ms. Randolph had a history of mental illness and emotional problems.
- b. The defendants could plainly see from speaking to Ms. Randolph that she suffered from mental illness.
- c. The story was self-contradictory.
- d. The story was manifestly untrue.
- e. The story was physically impossible.
- f. Ms. Randolph could not have heard anything from where she was, over 200 feet away, impeded by the tree canopy.
- g. Photographic evidence demonstrates that Ms. Randolph would not have been able to identify the facial characteristics of an individual from her window, which was over 200 feet away from the scene of the shooting, in a dimly lit area at approximately 2:00am.

**B. DEFENDANTS' DUTY TO INVESTIGATE
AN UNBELIEVABLE STORY**

135. Upon hearing Ms. Randolph's incredible tale of observation, two affirmative duties attached to the defendants: 1) the duty to see if Ms. Randolph had the observational or mental capacity to perceive the events; and 2) the obligation to investigate her mental health history and disclose this information to Mr. Williams.

**First: The Duty to Investigate
Witness's Capacity to Perceive**

136. First, defendants had an obligation to investigate whether Ms. Randolph's story was factually possible, before appropriating it for probable cause.

137. NYPD and KCDA were obligated to evaluate the capacity of a witness to see what she claimed to have seen.

138. Any reasonable investigator would have visited the location to determine if Ms. Randolph's version of facts was physically possible.

139. Had Defendants simply looked out the window where Ms. Randolph allegedly saw and heard events over 200 feet away at night, they would have immediately known that Ms. Randolph's story was manifestly untrue, physically impossible, and self-contradictory.

140. Defendants should have dismissed out of hand Ms. Randolph's incredible and unbelievable story because it was manifestly untrue, physically impossible, contrary to experience, and self-contradictory.

141. Defendants are not permitted to disregard common sense and common knowledge in assessing the credibility of a witness's story.

142. Even though Defendants took Ms. Randolph's written statement, those written statements did not capture the officer's observations regarding the witness's capacity to understand the event. *Model Prevention and Remedy of Erroneous Convictions Act*, 33 Ariz. St. L.J. 665 [2001].

**Second: The Duty to Investigate
Mental Illness**

143. Second, defendants had an obligation to investigate the mental health of Ms. Randolph, to confirm whether her statement was the product of mental or emotional illness.

144. NYPD and KCDA were not privileged to ignore that a witness statement was the product of mental illness.

145. Because the only eyewitness against Mr. Williams was Ms. Randolph, the defendants were obligated under *Brady* to investigate Ms. Randolph to ascertain if any condition impaired her ability to perceive, interpret and recall events. *People v. Collins*, 173 Misc. 2d 350, 355, 660 NYS2d 946, 949 [Sup. Ct. 1997], *aff'd*, 250 AD2d 379, 673 NYS2d 76 [1998].

146. Because the defendants here knew or had reason to know that a crucial prosecution witness had a mental condition, they had an affirmative duty to see that “justice shall be done.” *People v. Velasquez*, 49 Misc. 3d 265, 271, 14 NYS3d 661, 667 [Crim. Ct., New York County 2015] (*citing Berger v. United States*, 295 U.S. 78, 88, 55 S.Ct. 629, 79 L.Ed. 1314 (1935); NY Code of Professional Responsibility, Rule 3.8(b); ABA Standards for Criminal Justice Prosecution and Defense Function, 3d Ed. 3–3.11).

(i) *The Sirois Hearing*
Established Defendants’
Prior Knowledge of Mental
Health Issues

147. Defendants knew in advance of the *Sirois* hearing, and after, that Ms. Randolph had medical and mental issues so serious, they prevented her from even leaving her home:

148. Ms. Randolph testified, in so many words, that she had “medical” issues at the *Sirois* hearing.

149. Ms. Randolph testified at the *Sirois* hearing that these medical issues were so severe they prevented her from leaving the Williamsburg Housing Projects.

150. No member of the prosecution followed up on this testimony at the *Sirois* hearing with even a single question, which indicates that such a condition—so severe she could not leave her apartment—was not new information to them.

151. The prosecution didn’t follow up on the medical issue revelation at the *Sirois* hearing because the prosecution was already aware of the issues before the *Sirois* hearing.

152. Any defendant who did not have actual or constructive notice of Ms. Randolph's debilitating medical or mental issues prior to the *Sirois* hearing unquestionably had actual notice of it after she testified to this effect at the hearing.

**C. THE FAILURE TO DISCLOSE MENTAL
HEALTH HISTORY**

153. Upon information and belief, the defendants already knew, or learned of Ms. Randolph's mental health history long before Mr. Williams was arrested or indicted.

154. Once the defendants learned of the medical history of Ms. Randolph, they were obligated to turn that information over to the defense.

155. Mr. Williams was entitled to have the witness's mental illness made known to the jury so that the jurors could have evaluated the witness's testimony. *People v. Rensing*, 14 N.Y.2d 210, 250 NYS2d 401, 199 N.E.2d 489 [1964].

156. Because the prosecution witness suffered from an ongoing mental illness, the defense should have been afforded an opportunity to show that the witness's capacity was impaired as a result. *People v. Walker*, 116 AD2d 948, 498 NYS2d 521 [3d Dep't 1986].

157. Because Ms. Randolph's credibility as a witness was a central issue, the defense was entitled to access to the witness's mental health records. *People v. Baier*, 73 AD2d 649, 422 NYS2d 734 [2d Dep't 1979].

158. Because Mr. Williams was unable to introduce the witness's records reflecting that the witness suffered from mental illness, the defendants denied Mr. Williams:

- a. *Brady* material;
- b. The right to confront witnesses in violation of the Confrontation Clause; and
- c. The right to present a defense. *People v. Baranek*, 287 AD2d 74, 733 NYS2d 704 [2d Dep't 2001].

159. These mental health records were relevant to the issue whether the witness's capacity to perceive and recall events was impaired by a mental condition. *People v. Baranek*, 287 AD2d 74.

160. Ms. Randolph's psychiatric medical history and pattern of hospitalization for various psychiatric conditions would have destroyed her credibility if such medical records had been turned over to Plaintiff's defense counsel at the time of trial.

161. In addition to the unconstitutional *Sirois* hearing (the reason the original conviction was overturned), this separate and additional suppression by Defendants of material impeachment information concerning the witness's psychiatric history constitutes its own set of constitutional errors. *Chandras v. McGinnis*, No. 01 CIV. 2519 (LBS), 2002 WL 31946711, at *6 [EDNY 2002].

162. Suppressing material impeachment information concerning the witness's psychiatric history is a Confrontation Clause violation.

163. Suppressing material impeachment information concerning the witness's psychiatric and relevant medical history is a *Brady* violation.

164. This material information was and is extraordinarily probative on both on the issue of the reliability of her statements against Plaintiff, and the reliability of her statements as to whether or not she was ever really threatened or if this was merely a ruse to avoid the courtroom and cross-examination regarding her implausible story.

165. The Defendants committed a *Brady* violation in failing to disclose Ms. Randolph's medical condition when they either knew, or had reason to know, that Ms. Randolph, a crucial prosecution witness, suffered from psychiatric conditions which would put her credibility and reliability at issue both for her statements against the Plaintiff, and on the issue of whether or not she had been threatened.

166. The fact that Ms. Randolph revealed her medical issues and made them an issue at the *Sirois* hearing, and Defendants never turned over any materials about these significant issues, is conclusive proof in itself of a *Brady* and Confrontation Clause violation.

167. Ms. Randolph was the key witness at trial; she was the sole witness to identify Plaintiff as firing shots in the direction of Mr. Hill, though multiple shooters were alleged to have been involved in the assault.

168. Plaintiff could not have been convicted without the testimony of Annabelle Randolph.

169. The failure to disclose Ms. Randolph's medical condition and history was a purposeful suppression of critical evidence.

170. The Defendants improperly obtained witness statements through coercion, and by their actions deprived the defense of the opportunity to cross-examine Ms. Randolph regarding her psychiatric history or to advise the court and jury of the threats and deal offered by the police and prosecutors in exchange for her testimony.

171. As a result of the purposeful withholding of the *Brady* material noted previously, Ms. Randolph's testimony was presented to the jury via transcript and audiotape rather than in the form of testimony before the jury in open court thereby depriving the defense of any opportunity to confront and cross examine this completely unreliable and unbelievable witness.

172. Upon information and belief, Ms. Randolph informed Defendants of her prior psychiatric treatment.

173. Upon information and belief, Ms. Randolph's demeanor from the first day Defendants encountered her put Defendants on notice that Ms. Randolph had a mental illness.

174. In this case, the nature and quality of Ms. Randolph's information, coupled with their observation of her demeanor, gave the Defendants reason to be aware of issues involving Ms. Randolph's mental health.

175. NYPD were trained to recognize the signs of mental illness, emotional distress, and substance abuse.

176. The KCDA suppressed *Brady* material or similar evidence.

177. Because the KCDA and the individual prosecutors were presumed to have knowledge of all information gathered in connection with the NYPD investigation, the KCDA suppressed *Brady* material or similar evidence known only to police investigators.

178. The known exculpatory information possessed in this case by the police as investigators for the KCDA is imputed to the prosecution. *Kyles v. Whitley*, 514 U.S. 419, 421, 115 S.Ct. 1555, 131 L.Ed.2d 490 [1995]. This is because the prosecution is in the best position to assure the cooperation of and full disclosure from a coordinate executive agency.

179. The concept of constructive or imputed knowledge imposed a concomitant duty upon the Defendant KCDA and its agent-Defendants to seek out *Brady* material from other agencies working with the prosecution, including, but not limited to, the NYPD.

180. The Defendants here suppressed evidence by failing to search for background information that was readily available through routine investigation of the prosecution's files or the files of other government agencies.

181. The KCDA was duty-bound to actively to seek *Brady* material in its files and in the files of related agencies reasonably expected to have possession of such information.

182. This undisclosed exculpatory and impeachment evidence was material.

183. There was a reasonable probability that, had the evidence been disclosed to the defense, the result of the proceeding would have been different.

184. The suppression of this evidence undermines confidence in the outcome of the Mr. Williams's first trial.

185. This impeachment evidence was material because the witness at issue supplied the only evidence linking the Defendant to the crime.

186. This impeachment evidence was material because the likely impact on the witness's credibility would have undermined a critical element of the prosecution's case.

187. The testimony of the witness was not corroborated by other testimony.

188. Evidence of Ms. Randolph's psychiatric history satisfies the materiality standard.

189. Upon information and belief, Ms. Randolph's mental illness impaired her ability to perceive or recount events either on the date of the incident and during Grand Jury proceedings, the *Sirois* hearing, and all stages of the investigation and prosecution.

190. This undisclosed evidence was not cumulative.

191. Upon information and belief, there may be other exculpatory *Brady* material that has not been disclosed to Mr. Williams.

192. Upon information and belief, there may be other exculpatory impeachment material that has not been disclosed to Mr. Williams.

193. Upon information and belief, there may be other material that has not been disclosed to Mr. Williams that evidences violations of the Confrontation Clause.

194. Concealing this material constituted conduct which deviated egregiously from statutory requirements and accepted practices applicable in criminal cases. *Parisi v. Suffolk Cnty.*, No. 04-CV-2187 (ENV) (ETB), 2009 WL 4405488, at *10 [EDNY 2009] (*quoting Gisondi v. Town of Harrison*, 528 N.E.2d 157, 160 [NY 1998]).

195. Mr. Williams was denied a fair trial when this impeachment material was never revealed.

196. This withheld exculpatory evidence would have weighed in favor of reasonable doubt.

E. SYSTEMIC PRESSURE TO ACCUSE

197. The Williamsburg Housing Projects themselves have long been a thorn in the Defendants' statistical sides.

198. Defendants consider the Williamsburg Housing Projects as an epicenter of drug deals and illegal conduct.

199. Defendants were under enormous pressure to conduct swift investigations and "close cases".

200. Their goal was to close these cases and make arrests to demonstrate a policy of toughness on crime.

201. Mr. Williams's treatment demonstrates that the constitutional rights of the accused were accorded little respect in an area considered by the Defendants to be infested with criminals.

202. As with other homicides in this part of Brooklyn, law enforcement officials were under heavy pressure to make an arrest in the Vincent Hill case.

203. There was no probable cause against Mr. Williams in this case and the Defendants knew it.

204. Rather, Mr. Williams was targeted for arrest because of a collateral and malicious motive of sending a message to the neighborhood that the police were tough on individuals suspected of any criminal behavior regardless of the availability of proof.

205. The Defendants involved in the investigation assumed that Mr. Williams had committed other criminal acts which they could not prove.

206. Defendants conspired with civilian witnesses who they coerced and threatened in order to convict him or a murder that he did not commit.

CAUSE OF ACTION

State Common Law Malicious Prosecution
Plaintiff vs. All Defendants

207. Plaintiff hereby incorporates all other paragraphs as if fully set forth herein at length.

208. The tort of malicious prosecution protects the personal interest in freedom from unjustifiable proceedings, and its essence is the perversion of proper legal procedures against Plaintiff. *Susser v. Fried*, 115 Misc. 2d 968, 455 NYS2d 930 [NY City Civ. Ct. 1982].

**A. THE COMMENCEMENT AND
CONTINUATION OF CRIMINAL PROCEEDINGS**

209. The defendants commenced criminal and related proceedings against the Plaintiff.

210. The defendants continued criminal and related proceedings against the Plaintiff.

211. The defendants played an active role in the prosecution, giving advice and encouragement and importuning authorities to act. *Viza v. Town of Greece*, 94 AD2d 965, 966 [1983], *appeal dismissed* 64 NY2d 776 [1985].

**B. TERMINATION IN FAVOR OF THE
PLAINTIFF**

212. The criminal and other proceedings terminated in favor of the Plaintiff.

213. The outcome of the criminal proceedings against the Plaintiff are consistent with the innocence of the accused Plaintiff.

C. THE ABSENCE OF PROBABLE CAUSE

214. Lacking probable cause to arrest and prosecute Mr. Williams, the defendants coerced Eugene Bennett and Tyriin Fisher to falsely implicate Mr. Williams in a murder he did not commit.

215. With knowledge that their case would collapse given Bennett and Fisher's utter lack of credibility and the coercive threats used against them, the defendants sought to procure false

testimony from yet another alleged witness, Annabelle Randolph, continuing to rely on this cacophony of false statements and testimony through to his arrest and prosecution, though there was a glaring absence of probable cause to believe Mr. Williams committed this crime.

216. These defendants did not have knowledge or reasonably trustworthy information sufficient to warrant a person of reasonable caution in the belief that an offense was committed by the person to be arrested. *Martinez v. Simonetti*, 202 F.3d 625, 634 [2d Cir. 2000].

217. The facts available to the defendants at the time of the arrest, and before the arrest, did not establish probable cause. *Caldarola v. Calabrese*, 298 F.3d 156, 162 [2d Cir. 2002].

**1) Indictment was Improperly
Obtained**

218. Although Mr. Williams was indicted, the indictment in this case failed to establish probable cause.

219. The indictment against Mr. Williams was produced by fraud.

220. The indictment against Mr. Williams was produced by perjury.

221. The indictment against Mr. Williams was produced by the suppression of evidence.

222. The indictment against Mr. Williams was produced by other police conduct undertaken in bad faith. *Kirchner v. County of Niagara*, 107 AD3d 1620 [4th Dep't 2013].

**2) Defendants Ignored
Inconvenient Facts; Accepted
Unbelievable Ones**

223. Defendants improperly ignored facts in determining probable cause. *Markman v. City of N.Y.*, No. 13 CIV. 6843 (BMC), 2015 WL 9462098, at *2 [EDNY 2015] (citing *Jocks v. Tavernier*, 316 F.3d 128, 135 [2d Cir. 2003]).

224. In making a probable cause determination, defendants here disregarded plainly exculpatory evidence. *Panetta v. Crowley*, 460 F.3d 388, 395 [2d Cir.2006].

225. Defendants may form their probable cause to arrest using information from an eyewitness, *unless* the circumstances raise doubt as to the person's veracity, *Singer v. Fulton County Sheriff*, 63 F.3d 110, 119 [2d Cir.1995].

**3) Witness Lacked Fundamental
Reliability and Veracity**

226. The reliability or veracity of the informant, and the basis for the witness's knowledge are two important factors. *Caldarola v. Calabrese*, 298 F. 3d 156, 162 [2d Cir. 2002].

***First Factor: A Patently
Unreliable Witness***

227. Upon information and belief, defendants knew well in advance that Ms. Randolph suffered from mental illness which rendered her unreliable.

228. Upon information and belief, defendants, based on training and common sense, would have perceived Ms. Randolph's mental illness from interacting with her and observing her, which should have cast doubt on any information she provided.

***Second Factor: There was
No Basis for Ms.
Randolph's Knowledge.***

229. Defendants knew upon hearing Ms. Randolph's story that her entire story was based on a vantage point that would not have permitted the observation of the murder site she claimed.

230. Defendants knew Ms. Randolph lacked capacity to perceive as a witness.

231. Defendants ignored non-trivial discrepancies and external evidence powerfully undermining the reliability of the witness's identification, which itself undercuts any probable cause. *Wilson v. Russo*, 212 F.3d 781, 791 [3d Cir. 2000] (*citing Lallemand v. University of Rhode Island*, 9 F.3d 214 [1st Cir. 1993]).

232. Defendants knew or had constructive knowledge that there was an entire lack of probable cause in the criminal proceedings commenced against Plaintiff.

233. The facts and circumstances known to the Defendants when they commenced and continued these proceedings against Plaintiff would lead any reasonably prudent person in a similar situation to believe Plaintiff not guilty.

234. That there was no probable cause is evidenced by the fact that this conviction did not survive appeal.

D. ACTUAL MALICE

235. The Defendants commenced and continued the proceedings against Defendant with actual malice.

236. The Defendants commenced and continued the criminal proceedings against Plaintiff with “conscious falsity”—that is, they were conscious of the falsity of the proceedings against Defendant.

237. Defendants commenced the criminal proceedings for a wrong and improper motive, for something other than the desire to see the ends of justice served.

238. There is circumstantial evidence of malice because Defendants must have known that there was no probable cause to prosecute Plaintiff.

E. DEFENDANTS ARE NOT IMMUNE

239. KCDA’s conduct went far beyond the judicial phase of the criminal process, evaluating evidence, or simply initiating prosecution and presenting the State’s case. *Buckley v. Fitzsimmons*, 509 US 259, 270 [1993], quoting *Imbler v. Pachtman*, 424 US 409, 430 [1976]; *Johnson v. KCDA*, 308 AD2d 278, 285 [2003].

240. KCDA participated directly in the investigation. *Buckley*, 509 US at 270.

241. KCDA performed investigative work in order to decide whether Mr. Williams should be arrested. *Buckley*, 509 US at 273-275.

242. KCDA advised the police in order to decide whether Mr. Williams should be arrested. *Kirchner v. County of Niagara*, 107 AD3d 1620 [4th Dept. 2013]; *Burns v. Reed*, 500 US 478, 493-495 [1991].

243. Defendants' actions were made in bad faith. *Arteaga v. State of New York*, 72 NY2d 212, 216 [1988].

244. Defendants' actions were taken without a reasonable basis. *Arteaga v. State of New York*, 72 NY2d 212, 216 [1988].

245. Defendants' conduct went far beyond an exercise of their discretionary duties, as they ignored facts, fabricated findings, and coerced witnesses to give false testimony. *Kirchner v. County of Niagara*, 107 AD3d 1620 [4th Dept. 2013].

246. Defendants' conduct went far beyond the exercise of reasoned judgment which could typically produce different acceptable results. *Tango v. Tulevech*, 61 NY2d 34, 41 [1983].

F. THE CONSEQUENCES

247. Defendants' conduct actually caused Defendant to be wrongfully accused, tried, convicted, and imprisoned.

248. Defendants' conduct foreseeably caused Defendant to be wrongfully accused, tried convicted and imprisoned.

249. Plaintiff suffered damages and injuries as a result of Defendants' conduct as described herein.

250. Plaintiff suffered special injuries as a result of Defendants' conduct.

251. As a direct and foreseeable result of Defendants' conduct, Plaintiff suffered concrete harm, considerably more cumbersome than the physical, psychological or financial demands of

defending a prosecution. *Engel v. CBS, Inc.*, 93 NY2d 195, 689 NYS2d 411 [1999]; *Kaye v. Trump*, 58 AD3d 579, 873 NYS2d 5 [1st Dep't 2009].

252. Defendants, their officers, agents, servants and employees were responsible for the malicious prosecution of Plaintiff.

253. Defendant City of New York, as an employer of the Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

254. Defendants are not entitled to prosecutorial immunity because the prosecutor's actions went well beyond professional evaluation of evidence assembled by police. *Dann v. Auburn Police Dep't*, 138 AD3d 1468, 31 NYS3d 335 [4th Dep't 2016].

255. As a direct and proximate result of the misconduct and abuse of authority stated above, Plaintiff sustained the damages alleged herein.

DAMAGES AND PRAYER FOR RELIEF

256. Defendants caused numerous damages and injuries to Mr. Williams.

257. Mr. Williams sustained economic injury.

258. Mr. Williams sustained emotional injury.

259. Mr. Williams sustained severe mental anguish.

260. Mr. Williams sustained physical injuries and received negligent medical care while incarcerated.

261. Mr. Williams was deprived of his liberty while incarcerated.

262. Mr. Williams did not have access to the type of medical treatment that he would have had he had been a free civilian.

263. Mr. Williams suffered loss of freedom and liberty.

264. Mr. Williams suffered loss of companionship and services of his family.

265. Mr. Williams is entitled to damages for past emotional anguish and suffering.

266. Mr. Williams is entitled to damages for future emotional anguish and suffering.

267. Mr. Williams suffered lost earnings and lost opportunities to develop earnings potential

268. Mr. Williams suffered bodily injury, pain, and suffering.

269. Mr. Williams is entitled to compensation for physical injuries sustained and harm as a result of the wrongful incarceration.

WHEREFORE, Plaintiff Randolph Williams prays as follows:

- A. Damages in the amount of twenty-five million dollars (\$25,000,000.00) in compensatory damages;
- B. For judgment against each of the Defendants, jointly and severally, on each cause of action, in an amount which exceeds the jurisdictional limits of all lower courts which might otherwise have jurisdiction;
- C. For judgment against each of the Defendants, jointly and severally, on each cause of action, in an amount which exceeds the jurisdictional limits of all lower courts which might otherwise have jurisdiction;
- D. That the Court award compensatory damages to him and against Defendants, jointly and severally on each and every claim herein, in an amount to be determined at trial;
- E. That the Court award punitive damages to him and against all individual Defendants, in an amount to be determined at trial, that will deter such conduct by Defendants in the future;
- F. For a trial by jury;
- G. For pre-judgment and post-judgment interest and recovery of his costs, including reasonable attorney's fees; and
- H. For any and all other relief to which he may be entitled.

DEMAND FOR JURY TRIAL

Plaintiff respectfully demands a trial by jury for all issues so triable.

Dated: New York, New York
March 13, 2017

By: 
Paul F. Callan, Esq.
Co-counsel & of-counsel to
EDELMAN & EDELMAN, P.C.
Attorneys for Randolph Williams
61 Broadway, Suite 2220
New York, New York 10006
Tel: (212) 943-1200

VERIFICATION

PAUL F. CALLAN, an attorney at law duly licensed to practice in the courts of the State of New York, affirms the following under penalty of perjury:

That your affirmant is co-counsel and of-counsel to the law firm of EDELMAN and EDELMAN, P.C., attorneys for the plaintiff in the within action; That affirmant has read the foregoing VERIFIED COMPLAINT and knows the contents thereof; that same is true to the knowledge of affirmant except as to those matters therein alleged upon information and belief and as to those matters affirmant believes them to be true.

The reason that this verification is made by affirmant and not by the plaintiff is that the plaintiff resides in a county other than that in which affirmant practices law; Plaintiff resides in Kings County and affirmant's office is in New York County. The sources of the information contained in said Complaint are documents in affirmant's files as well investigation and information and communications had with plaintiff.

Dated: New York, New York
March 13, 2017


PAUL F. CALLAN

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

RANDOLPH WILLIAMS,

Plaintiff,

-against-

THE CITY OF NEW YORK individually and for the
NEW YORK CITY POLICE DEPARTMENT, and KINGS
COUNTY DISTRICT ATTORNEY'S OFFICE; DETECTIVE
THOMAS HANDLEY, DETECTIVE JAMES BODNAR,
DETECTIVE MARK BROWN, DETECTIVE DINO
ANSELMO, DETECTIVE BRIAN ELZ, DETECTIVE CHRIS
FLORIO, DETECTIVE KIM CARILLO, DETECTIVE
SULLIVAN, DETECTIVE ANDREW TORLINCASI,
DETECTIVE BILLIE, DETECTIVE LUIS FONTANEZ,
DETECTIVE LUIS BATISTA, POLICE OFFICER JASON
REEVES, POLICE OFFICER MULERO, POLICE OFFICER
JASMINE [MULLER] VALEZ, POLICE OFFICER KARL
KRIKELIS, POLICE OFFICER ANDREW TORLIONCAS,
AND POLICE OFFICER ABRAHAM CRUZ, individually
and in their official capacities as members of the NEW YORK
CITY POLICE DEPARTMENT; and JOHN DOE
DETECTIVES #1-5, individually and in their official capacity
as detective investigators for the KINGS COUNTY DISTRICT
ATTORNEY'S OFFICE; JOHN DOE OFFICERS AND
DETECTIVES #1-5, individually and in their official
capacities as members of the NEW YORK CITY POLICE
DEPARTMENT; and KINGS COUNTY DISTRICT
ATTORNEY'S OFFICE, HOWARD JACKSON, ESQ., AL
DEINGENIIS, ESQ., LARRY FREDELLA, ESQ., individually
and in their official capacities as members of the Defendant
KINGS COUNTY DISTRICT ATTORNEY'S OFFICE,

Defendants.

SUMMONS & COMPLAINT

Signature (Rule 130-1.1-a)



Paul F. Callan, Esq.
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